

Below are my responses in Red. Also, I have attached the updated Spec for Commissioning.

See below for additional info on some of the responses provided and the need to provide further clarification. We understand the VA may not provide further clarification but feel it is important to point out these potential issues

**Original Questions and Response:**

2. SECTION 01 91 00, 1.1 COMMISSIONING DESCRIPTION: Does the contractor or the government select the “commissioning agent/party”?” a. If contractor, does the contractor need to factor in the cost?

The **Contractor selects and hires the CxA**, subject to **VA approval**.

Same response with question 9

**ISSUE**

**This response directly contradicts the requirements of spec section 01 91 00 which clearly states in section 1.8C that the commissioning agent is hired by the VA under a separate contract. The entire spec is written based on this partnership and is typical on most every VA job**

**We have updated the Spec in an Amendment to reflect that the Contractor will appoint the Commissioning Agent.**

**Original Questions and Response;**

7. Work Phasing / Hospital Operations: Since this work occurs in an active medical facility, can the Government provide guidance on: a. Required phasing or work-hour restrictions, Contractor is required to phase work to prevent disruption to operations and to coordinate activities impacting occupied patient areas. The Contractor must propose phasing and obtain VA approval.

**ISSUE**

**This response along with the response to question 12 on page 11 of 13 and question 18 on page 12 of 13 create many problems in making sure all GC's are bidding the same scope of work. The phasing plan should be defined prior to bid as this affects cost, total project duration, total mobilizations, ICRA materials and qty of materials,etc. If the project were negotiated and not a hard bid, these types of items could most likely be finalized prior to construction but this is a hard bid governed by price**  
**Based on this response the VA is leaving it up to the GC to determine the phasing to prevent disruptions to operations and to coordinate activities impacting occupied patient areas. This response does not define the phasing requirements, it does not define requirements for “disruptions”. We would bid the project based on the least amount of phases as to us, this would be the least disruptive. The more phases, the more money it will cost. The GC's interpretation and definition of “least disruptive” may be different from the VA's. Since the VA is leaving this up to the GC to determine and is not clearly defining the required phases, all GC's will be bidding a different scope and the VA would most likely have to honor the phasing presented by the GC as long as they bid per the info they had been provided at the time of bid. IF the VA does not approve the GC's phasing plan this opens the door for change orders as long as the**

GC's plan was reasonable based on the info they had at the time of bid and was necessary in order to meet the required 365 day deadline.

**The specifications do define the required phasing structure and work restrictions 01 00 00 – General Requirements, paragraph 1.6.G. The Government does not agree that the phasing requirements are unclear or that bidders will be pricing different scopes. All bidders must base their proposals on the four mandated phases and the operational and safety requirements stated in the Contract Documents.**

**Original Questions and Response:**

14. EMT Requirements: Please clarify if conduit is required in all locations or if plenum cabling is acceptable in concealed and accessible areas. Also, please clarify if there are different requirements for 120v power vs low voltage controls wiring? **Yes.** The drawings require *all* wiring to be in conduit unless specifically noted otherwise. No such exceptions are shown. **No.** The drawings do not allow plenum cable as a substitute for conduit. **No.** Both are required to be routed in conduit unless otherwise noted

**ISSUE**

**The first VA response is the word YES. What is this in response to ?**

**The Yes is for the question. The contract drawings and specifications require all wiring to be installed in conduit unless a specific exception is clearly noted.**

**Original Questions and Response:**

15. What are the specifications for the acoustical ceil Must match existing in kind

**ISSUE**

**THE QUESTIONS ASKS FOR THE SPECS ON THE ACOUSTICAL CEILING AND THE ANSWER APPEARS TO STATE TO MATCH EXISTING. WHAT ARE THE SPECS OF THE EXISTING? GC'S WILL BID THE CHEAPEST OPTION**

**The VA Response again is to replace in-kind to match existing conditions.**

**This means:**

- **Same ceiling tile type, pattern, texture, color, and size as existing.**
- **Same suspension grid type and finish as existing.**
- **Same ceiling elevation unless otherwise modified by other trades.**

**This is consistent with VA practice when a bid package provides removal/reinstallation requirements.**

**Original Question and Response**

4. The specifications call for comprehensive Testing, Adjusting, and Balancing (TAB) of HVAC systems. Please confirm the extent of this work. Are we required to re-balance all air outlets and hydronic terminals throughout the areas served by the new AHUs, or just balance the new equipment to match the design flow rates? Please provide drawings

showing clear scope and all areas that are to be included as part of TAB and as part of pretesting.

Per Section 23 05 93, Testing, Adjusting, and Balancing (TAB) shall be performed on *all HVAC air and hydronic systems* served by the new or modified equipment associated with this project. The specifications require full-system balancing and do not permit limiting TAB to only new equipment. All air outlets, terminal units, duct branches, hydronic terminals, coils, valves, and associated components must be balanced to the design flow rates within the specified tolerances. TAB is also a prerequisite for functional performance testing under Sections 23 08 00 and 01 91 00; therefore, full air and hydronic balancing must be completed prior to commissioning and acceptance. The mechanical drawings (2-M-101 through 2-M-161) define all areas included in TAB and pretesting.

#### **ISSUE**

**As long all of the areas requiring T&B as identified in the VA's response and their required design flows are shown on the set of drawings issued at the time of bid, there is no issue. IF some of HVAC air and hydronic systems that are served by the new or modified equipment are not shown on the drawings, there is no way for the GC to quantify this work and they would not be able to include the cost in their bid**

**The Government does not agree that the TAB scope is undefined. The mechanical drawings and specifications collectively define the scope to be priced. The requirement remains: full-system TAB for all areas served by the new/modified equipment shown in the contract documents, completed before commissioning and acceptance. Pricing should be prepared on that basis.**

**If you have identified an apparent gap (e.g., a space not depicted on the mechanical plans yet clearly served by the new/modified equipment), please submit an RFI or carry a documented allowance with stated assumptions in the bid.**

#### **Original Questions and Response**

19. Please confirm no hard barriers and no negative air pressure will be required for ICRA in work areas as these items are not detailed in the plans as specified. IF the ICRA classification for this project is one that would require these types of barriers, please include these details on the drawings so all GC's are bidding the same scope.

**Hard barriers and negative air pressure ARE required for ICRA per Specification 01 35 26, regardless of whether they are shown on the drawings.** The project takes place in an active VA Medical Center, and the specification mandates fire-rated temporary partitions, HEPA negative air machines, containment enclosures, walk-off mats, and dust control measures. Drawings are not updated to show temporary ICRA barriers; the contractor must develop an ICRA plan for VA approval. The ICRA classification will determine if additional controls are required, but the baseline containment measures already apply.

#### **ISSUE**

If the required ICRA barriers and locations are not clearly defined on the plans, all GC's will be bidding a different scope. IF hard barriers are required at certain locations, they should be identified. If containment enclosures or ante rooms are required, these locations should be clearly identified IF these barriers should extend to ceiling, to deck, etc...this should be clarified. Based on the info provided, we would assume Fire Rated plastic would be suitable for ICRA barriers at most locations

**The contract documents clearly establish that hard barriers, containment enclosures, and negative air pressure are required, and that the contractor must determine the locations and configurations as part of the ICRA plan. These requirements are fully defined in Section 01 35 26 and are consistent across all bidders. No additional drawing details will be issued.**

**Assumptions such as the use of "fire-rated plastic" are not acceptable unless specifically permitted in the specification.**

#### **Original Questions and Response**

21. Please confirm no drywall patching will be required for new work. If any work will be required cutting and patching of walls, please provide wall type at each area.

Drywall patching *will* be required where new work involves cutting or penetrating walls. The specifications require the contractor to cut, patch, repair, firestop, and restore all disturbed wall surfaces to match existing conditions

#### **ISSUE**

**No wall types were provided as part of the response. This info is needed in order to properly price. All fire walls should also be clearly identified on the plans and all smoke walls based on this response**

**Drywall patching is required wherever the scope cuts or penetrates walls; finishes must match existing per 01 00 00.**

**Firestopping is required at all penetrations of rated assemblies per 07 84 00; the Contractor shall identify ratings and submit listed systems for approval.**

**A project-wide architectural wall-type schedule will not be issued; this is a controls upgrade with incidental architectural restoration. Use existing conditions and life-safety documentation and submit location-specific RFIs if a rating cannot be reasonably determined during the bid period.**